

24STCV27983 24STCV27983

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-07-29

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C11%2C07%2F29%2F2026

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Case Number: 24STCV27983 Hearing Date: July 29, 2026 Dept: 11

Preliminary Approval of Class Action

Settlement

Department SSC-11

Ryan Nguyen v. Boiling Point Restaurant (S. CA), Inc., et al.

Case

No.: 24STCV27983

Hearing: July 29, 2026

TENTATIVE RULING

CONTINUE

preliminary approval for the parties to address the following:

1. See Settlement Agreement ¶36. Defendants (not counsel) should provide a declaration evidencing their financial situation and the need for an installment plan to fund the settlement. Provide specific information, not generalized conclusory statements. What evidence can Defendants provide that they have the ability to make the payments agreed to?

2. The Released Class Claims definition (Settlement Agreement ¶9.gg) purports to release claims that exceed the scope of those alleged in the Operative Class Complaint (i.e., failure to keep requisite payroll records, failure to pay all accrued and vested vacation and sick pay).

How is this proper? Please revise or justify.

3. The escalator clause at Settlement Agreement

¶16 provides Defendants with the option to shorten the Class Period in lieu of increasing the Gross Settlement Amount. Based on current records, the parties and/or administrator should review and verify the workweek total and confirm the end date of the Class Period before preliminary approval is granted. Revise the agreement and notice if necessary.

4. Plaintiff's PAGA notice letter was submitted

on October

23, 2024. For actions involving PAGA notice letters

sent after June 19, 2024, Plaintiff should comply with the updated PAGA requirements established by S.B. 92 and A.B. 2288 which amended the principal provisions of Labor Code § 2698, et seq. The 75%-25% PAGA penalty allocation throughout the Settlement Agreement should be revised to reflect the updated structure in Lab. Code, § 2699(m) – 65% of the amount to the LWDA, 35% to Aggrieved Employees. Ensure the Notice is modified to match.

BACKGROUND

Plaintiff

Ryan Nguyen sues his former employer, Defendants Boiling Point Restaurant (S. CA), Inc. and Boiling Point Group, Inc., for alleged wage and hour violations. Defendants operate a chain of restaurants serving pan-Asian hot-pot soups, desserts, and tea. Plaintiff seeks to represent a class of Defendants' current and former non-exempt employees.

On October 23, 2024, Plaintiff

provided written notice to the LWDA by online submission and to Defendants by U.S. Certified Mail, pursuant to California Labor Code Section 2699.3, of the specified provisions of the California Labor Code alleged to have been violated by Defendants ("PAGA Notice").

On

October 25, 2024, Plaintiff filed a Class Action Complaint ("Operative Class Complaint") against Defendant alleging causes of action for: (1) Violation of Cal. Labor Code §§ 1194, 1197, and 1197.1 (Minimum Wages) (2) Violation of Cal. Labor Code §§ 510 and 1198 (Unpaid Overtime) (3) Violation of Cal. Labor Code §§ 226.7 and 512(a) (Meal Break Violations) (4) Violation of Cal. Labor Code § 226.7

(Rest Break Violations) (5) Violation of Cal. Labor Code §§ 204 and 210 (Wages Not Timely Paid During Employment) (6) Violation of Cal. Labor Code § 226(a) (Wage Statement Violations) (7) Violation of Cal. Labor Code §§ 201, 202, and 203 (Untimely Final Wages) (8) Violation of Cal. Labor Code §§ 2800 and 2802 (Failure to Reimburse Necessary Business Expenses) (9) Violation of Cal. Business & Professions Code §§ 17200, et seq.

On

December 30, 2024, Plaintiff filed a Complaint for Enforcement Action Under the Private Attorneys General Act, Cal. Labor Code §§ 2698 et seq. (“Operative PAGA Complaint”), Case No. 24STCV34590 (“PAGA Action”), which alleged one cause of action under the Private Attorneys General Act of 2004 pursuant to California Labor Code Section 2698 et seq. (“PAGA”) against Defendants.

On

July 1, 2025, the Court related the Class Action and PAGA Action (together, “Actions”) and deemed the Class Action lead.

On

September 4, 2025, the Parties participated in a formal mediation conducted by Lynn Frank, Esq., which ultimately resulted in settlement. The terms of settlement are finalized in the long-form Joint Stipulation of Class Action and PAGA Settlement (“Settlement Agreement”), a copy of which is attached to the Declaration of Jasmine Y. Kianfard (“Kianfard Decl.”) as Exhibit 3.

Now

before the Court is the Motion for Preliminary Approval of the Settlement Agreement.

SETTLEMENT CLASS DEFINITION

.

“Class” or “Class Member(s)” means all current and former non-exempt, hourly paid employees who worked for Defendants in California at any time during the Class Period. (¶9.d)

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“Class

Period” means the period from October 25, 2020 through October 31, 2025. (¶9.h)

•
“Aggrieved

Employee(s)” means all current and former non-exempt, hourly paid employees who worked for Defendants in California at any time during the PAGA Period. (¶9.a)

•
“PAGA

Period” means the period from October 23, 2023 through October 31, 2025. (¶9.aa)

•
“Participating

Class” or “Participating Class Member(s)” means all Class Members who do not submit a timely and valid Request for Exclusion. (¶9.cc)

TERMS OF SETTLEMENT AGREEMENT

The essential terms are as follows:

•
The Gross

Settlement Amount (“GSA”) is \$900,000, non-reversionary.
(¶9.s)

o Escalator Clause: Defendants have represented that the Class Members worked a total of 36,744 workweeks during the period October 25, 2020 through September 4, 2025. If it is determined by the Settlement Administrator that the total number of Workweeks worked by the Class Members during the Class Period actually exceeds 36,744 by more than 10% (i.e., if the Workweeks exceed 40,418), then Defendants shall either (1) proportionally increase the Gross Settlement Amount according to the following formula: $\text{Total Number of Workweeks} \div 40,418 \times \text{Gross Settlement Amount}$, or (2) end the Class Period on the date that the number of Workweeks total 36,744. (¶16)

•
The Net

Settlement Amount (“Net”) (\$495,500) is the GSA minus the following:

o Up to \$300,000
(33 1/3%) for

attorney fees (§12);

o Up to \$35,000 for litigation costs (Ibid.);

o Up to \$5,000 for an Enhancement

Payment to each Named Plaintiff (§13);

o Up to \$14,500 for settlement

administration costs (§15); and

o Payment of \$50,000 PAGA penalty (75% or \$37,500 to the LWDA). (§14)

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Defendants

shall pay the Employer Taxes in addition to the Gross Settlement Amount. (§9.n)

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There

is no claim form requirement. (Notice p. 1)

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Individual Settlement Payment Calculation: After

Final Approval, the Settlement Administrator will divide the final Net

Settlement Amount by the Workweeks of all Participating Class Members to yield

the "Final Workweek Value," and multiply each Participating Class Member's

individual Workweeks by the Final Workweek Value to yield each Participating

Class Member's final Individual Settlement Share. (§17.b)

o PAGA Payments: The Settlement Administrator

will divide the Aggrieved Employees' Amount, i.e., 25% of the PAGA Amount, by the Pay Periods

of all Aggrieved Employees to yield the "Pay Period Value," and multiply each Aggrieved

Employee's individual Pay Periods by the Pay Period Value to yield each

Aggrieved Employee's Individual PAGA Payment. (§18)

o Tax Allocation: Class Members' Individual Settlement Shares

will be allocated as follows: 20% as wages, 80% as interest, penalties and

non-wage damages. Each Individual PAGA Payment will be allocated as one hundred

percent (100%) penalties. (§19)

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Response Deadline: "Response Deadline" means the deadline by which Class Members must submit a Request for Exclusion, Notice of Objection, and/or Dispute, which shall be the date that is forty-five (45) calendar days from the initial mailing of the Class Notice by the Settlement Administrator to Class Members, unless the 45th day falls on a Sunday or Federal holiday, in which case the Response Deadline will be extended to the next day on which the United States Postal service is open. The Response Deadline may also be extended by express agreement between Class Counsel and Defendants' Counsel. In the event that a Class Notice is re-mailed to a Class Member, the Response Deadline for that Class Member shall be extended fifteen (15) calendar days from the original Response Deadline. (¶9.kk)

o

If more than ten percent (10%) of the Class Members submit timely and valid Requests for Exclusion, Defendants may elect to rescind the Settlement Agreement. (¶133)

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Funding of Settlement: Defendants will fund the Gross Settlement Amount in installments as follows: (¶136)

o First Installment: Defendants will deposit

Two Hundred Thousand Dollars and Zero Cents (\$200,000.00) of the Gross Settlement Amount within seven (7) business days after the Court grants preliminary approval of this Settlement or by December 31, 2025, whichever is later ("First Installment"), into a Qualified Settlement Fund ("QSF") within the meaning of Treasury Regulation Section 1.468B-1, et seq., to be established by the Settlement Administrator. (¶136.a)

o Remaining Installments: Defendants will deposit Seven Hundred

Thousand Dollars and Zero Cents (\$700,000.00) of the Gross Settlement Amount in equal monthly installments of Fifty Thousand Dollars and Zero Cents (\$50,000.00) beginning on January 31, 2026 or the last day of the month after payment of the First Installment (\$200,000.00) was made, or whichever is later, and continuing monthly until the Gross Settlement Amount is paid in full ("Installment Payment(s)), into the QSF. (¶136.b)

o Any failure by Defendants to timely pay the

First Installment or any Installment Payment shall be an event of default.

Within three (3) business days of any default, the Settlement Administrator shall email counsel for both Parties notifying them of any default (the "Default Notice"). Defendants shall have no more than five (5) business days from the date of the Default Notice to cure the default. Any default that is not cured by the 10th business day from the date of the Default Notice shall entitle Plaintiff to move ex parte to have all remaining unpaid Installment Payment(s) immediately accelerated and judgment entered against Defendants for the remaining unpaid Installment Payment(s).

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Disbursement:

Within five (5) business days of the Effective Date and full funding of the Gross Settlement Amount, the Settlement Administrator will issue the Individual Settlement Payments to Participating Class Members, Individual PAGA Payments to Aggrieved Employees, LWDA Payment to the LWDA, Enhancement Payment to Plaintiff, Attorneys' Fees and Costs to Class Counsel, and Settlement Administration Costs to itself. The Settlement Administrator shall also set aside the Employer Taxes and all employee-side payroll taxes, contributions, and withholding, and timely forward these to the appropriate government authorities. (¶37)

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Uncashed Settlement Checks: Each Individual Settlement Payment and Individual PAGA Payment check will be valid and negotiable for one hundred and eighty (180) calendar days from the date the checks are issued, and thereafter, shall be canceled. Any funds associated with such canceled checks shall be distributed by the Settlement Administrator to the State of California's Unclaimed Property Division in the name of the Participating Class Member. The Parties agree that this disposition results in no "unpaid residue" under California Civil Procedure Code Section 384, as the entire Net Settlement Amount will be paid out to Participating Class Members, whether or not they cash their settlement checks. Therefore, Defendants will not be required to pay any interest on such amounts. (¶38)

.

The settlement administrator will be Apex Class Action LLC. (¶9.II)

The proposed Settlement Agreement was submitted to the LWDA on January 22,

2026. (Kianfard Decl.,
Exhibit 4.)

Participating class members and the named
Plaintiff will release certain claims against Defendant. (See further discussion below)

ANALYSIS OF SETTLEMENT AGREEMENT

1. Does a presumption of fairness exist?

1.

Was

the settlement reached through arm's-length bargaining? On
September 4, 2025, the Parties participated in a formal mediation conducted by
Lynn Frank, Esq., which ultimately resulted in settlement. (Kianfard Decl., ¶14.)

2.

Were

investigation and discovery sufficient to allow counsel and the court to act
intelligently? Class Counsel represents that prior to mediation, Defendants produced all of
the putative class members' time records and pay data as well as Defendants'
relevant wage and hour policies, and information regarding the total number of
putative class members, the number of current versus former employees, the
total workweeks worked by the putative class members, and the average rate of
pay for the putative class members. (Id. at ¶24.)

3.

Is

counsel experienced in similar litigation? Class Counsel is
experienced in class action litigation, including wage and hour class
actions. (Id.
at Exhibit 1.)

4.

What

percentage of the class has objected? This cannot be determined until the fairness hearing. See Weil & Brown, Cal. Practice
Guide:

Civil Procedure Before Trial (The Rutter Group 2014) ¶ 14:139.18, ("Should the
court receive objections to the proposed settlement, it will consider and
either sustain or overrule them at the fairness hearing.").

CONCLUSION: The settlement is entitled to a presumption of fairness.

2.

Is the settlement fair, adequate, and reasonable?

1.

Strength of Plaintiff's case. "The most important factor is the strength of the case for plaintiff on the merits, balanced against the amount offered in settlement." (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130.) Here, Class Counsel has provided information, summarized below, regarding the estimated values of the class claims alleged:

Violation

Maximum Exposure

Meal

Period Violations

\$854,756

Rest

Period Violations

\$735,486

Unpaid

Wages

\$643,230

Unreimbursed

Business Expenses

\$283,050

Waiting

Time Penalties

\$1,696,563

Wage

Statement Penalties

\$740,650

PAGA

Penalties

\$759,600

Total

\$5,713,335

(Kianfard

Decl., ¶¶27-40.)

2. Risk, expense, complexity and likely duration of further litigation. Given the nature of the class claims, the case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and appeals) are also likely to prolong the litigation as well as any recovery by the class members.

3. Risk of maintaining class action status through trial. Even if a class is certified, there is always a risk of decertification. (See *Weinstat v. Dentsply Intern., Inc.* (2010) 180 Cal.App.4th 1213, 1226 (“Our Supreme Court has recognized that trial courts should retain some flexibility in conducting class actions, which means, under suitable circumstances, entertaining successive motions on certification if the court subsequently discovers that the propriety of a class action is not appropriate.”).)

4. Amount offered in settlement. Class Counsel obtained a

\$900,000 non-reversionary

settlement. This is approximately 15.7% of Plaintiff's estimated maximum recovery which, given the uncertain outcomes, is within the "ballpark" of reasonableness.

The settlement amount, if reduced by the requested deductions, leaves approximately \$495,500 to be divided among approximately 920 class members. Assuming full participation, the resulting payments will average approximately \$538.58 per class member.

5. Extent of discovery completed and stage of the proceedings. As indicated above, at the time of the settlement, Class Counsel had conducted sufficient discovery.

6. Experience and views of counsel. The settlement was negotiated and endorsed by Class Counsel who, as indicated above, is experienced in class action litigation, including wage and hour class actions.

7. Presence of a governmental participant. This factor is not applicable here.

8. Reaction of the class members to the proposed settlement. The class members' reactions will not be known until they receive notice and are afforded an opportunity to object, opt-out and/or submit claim forms. This factor becomes relevant during the fairness hearing.

CONCLUSION: The settlement can be preliminarily deemed "fair, adequate, and reasonable."

3.

Scope of the release

.

Class Settlement Release. Upon the Effective Date and full funding of the Gross Settlement Amount, Plaintiff and all Participating Class Members, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns will be deemed to have fully, finally, and forever

released, settled, compromised, relinquished, and discharged the Released Parties of all Released Class Claims. (§139)

o “Released Class

Claims” means any and all claims that were or could have been alleged in the Operative Class Complaint that arose during the Class Period including without limitation with respect to the following claims: (a) failure to pay overtime wages, including failure to include additional remuneration when calculating overtime wages; (b) failure to provide compliant meal periods or pay meal period premiums in lieu thereof; (c) failure to authorize and permit compliant rest periods or pay rest period premiums in lieu thereof; (d) failure to pay minimum and straight time wages; (e) failure to timely pay all earned wages and final paychecks due at time of separation of employment; (f) failure to timely pay wages during employment; (g) failure to provide complete and accurate wage statements; (h) failure to keep requisite payroll records; (i) failure to reimburse necessary business-related expenses and costs; (j) failure to pay all accrued and vested vacation and sick pay; and (k) all claims under California Business & Professions Code § 17200 for unfair business practices that could have been premised on the facts, claims, causes of action or legal theories described above; and (k) violation of the California Industrial Wage Orders that could have been premised on the facts, claims, causes of action or legal theories described above, as well as any potential penalties, interest or attorneys’ fees associated with all of such causes of action under California law. (§19.9g)

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PAGA Settlement Release. Upon the Effective Date and full funding of the Gross Settlement Amount, Plaintiff and all Aggrieved Employees, on behalf of themselves and their respective former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns will be deemed to have fully, finally, and forever released, settled, compromised, relinquished, and discharged the Released Parties of all Released PAGA Claims. The foregoing release shall be binding on Plaintiff, the Aggrieved Employees, and the State of California, and shall bar by res judicata any claim under PAGA brought by any person, including the Aggrieved Employees, on behalf of the State of California, as to any claims predicated on the Released PAGA Claims. (§140)

o “Released PAGA

Claims” means all claims, demands, rights, liabilities and causes of action

under the California Labor Code Private Attorneys General Act that were alleged, or reasonably could have been alleged, based on the claims asserted in the Operative PAGA Complaint, the PAGA Notice (and any amendments thereto) and ascertained in the course of the PAGA Action, arising during or with respect to the PAGA Period. (§19.hh)

o All Aggrieved

Employees will be bound to the PAGA Settlement and will be issued their Individual PAGA Payment, irrespective of whether they submit a Request for Exclusion. (§129)

.

“Released Parties” means Defendants and any of their past, present, and/or future, directors, officers, partners, principals, trustees, shareholders, owners, members, managers, employees, administrators, agents, attorneys, insurers, predecessors, successors, assigns, DBAs, parents, and subsidiaries. (§19.ii)

.

The named Plaintiff will also provide a general release and waiver of CC § 1542. (§141)

4.

May conditional class certification be granted?

1.

Standards

A detailed analysis of the elements required

for class certification is not required, but it is advisable to review each

element when a class is being conditionally certified (*Amchem Products, Inc. v. Winsor* (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a

different standard to determine the propriety of a settlement class as opposed to a litigation class certification.

Specifically, a lesser standard of scrutiny is used for settlement cases. (*Dunk* at 1807, fn 19.)

Finally, the Court is under no “ironclad requirement” to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (*Wershba*

at 240.)

2.

Analysis

a.

Numerosity. There are approximately 920 class members. (Kianfard Decl., ¶16.)

This element is met.

b.

Ascertainability. The

proposed class is defined above. The

class definition is “precise, objective and presently ascertainable.” (Sevidal

v. Target Corp. (2010) 189 Cal.App.4th 905, 919.) The class members are

identifiable from Defendant’s records. (Kianfard

Decl., ¶16

c.

Community

of interest. “The community of interest requirement

involves three factors: ‘(1) predominant common questions of law or fact; (2)

class representatives with claims or defenses typical of the class; and (3)

class representatives who can adequately represent the class.” (Linder

v. Thrifty Oil Co. (2000) 23 Cal.4th 429, 435.)

As to commonality, Plaintiff alleges that Defendants

denied compliant meal and rest periods to employees, required employees to

perform work off-the-clock, and failed to fully compensate employees for all

time actually worked. These policies and practices meant that Defendants

allegedly failed to pay minimum and overtime wages, and other related claims.

Plaintiff alleges that Defendants’ policies and practices were uniform as to

all Class Members. (Memo ISO Prelim at 15:26-16:3.)

As to typicality, Plaintiff alleges that his

claims are similar to that of the other Class Members and that Plaintiff’s

claims arise out of the same alleged course of conduct giving rise to the

claims of the other Class Members. (Id. at 16:11-13.)

As to adequacy, Plaintiff represents that he is

aware of the duties and risks of serving as class representative and has

participated in the litigation. (Declaration of Ryan Nguyen, ¶¶3-10.)

d.

Adequacy

of class counsel. As indicated above, Class Counsel has shown experience in class action litigation, including wage and hour class actions.

e.

Superiority. Given

the relatively small size of the individual claims, a class action appears to be superior to separate actions by the class members.

CONCLUSION: The class may be conditionally certified since the prerequisites of class certification have been satisfied.

5.

Is the notice proper?

1.

Content

of class notice. The proposed notice is attached to the Settlement Agreement as Exhibit A. Its content appears to be acceptable. It includes information such as: a summary of the litigation; the nature of the settlement; the terms of the settlement agreement; the proposed deductions from the gross settlement amount (attorney fees and costs, enhancement awards, and administration costs); the procedures and deadlines for participating in, opting out of, or objecting to, the settlement; the consequences of participating in, opting out of, or objecting to, the settlement; and the date, time, and place of the final approval hearing.

Notice will be given in English, Spanish, and Mandarin. (¶27.a)

2.

Method

of class notice.

Within fourteen (14) calendar days of Preliminary Approval, Defendants will provide the Class List to the Settlement Administrator. (¶26) Within seven (7) calendar days after receiving the Class

List from Defendants, the Settlement Administrator will perform a search based on the National Change of Address Database or any other similar services available, such as provided by Experian, for information to update and correct for any known or identifiable address changes, and will mail a Class Notice in English, Spanish, and Mandarin (in the form attached as Exhibit A to Settlement Agreement) to all Class Members via First-Class U.S. Mail, using the most current, known mailing addresses identified by the Settlement Administrator. (§27.a)

Any Class Notice

returned to the Settlement Administrator as undeliverable on or before the Response Deadline will be sent promptly via First-Class U.S. Mail to the forwarding address affixed thereto and the Settlement Administrator will indicate the date of such re-mailing on the Class Notice. If no forwarding address is provided, the Settlement Administrator will promptly attempt to determine the correct address using a skip-trace or other search, using the name, address, and/or Social Security number of the Class Member, and perform a single re-mailing within five (5) calendar days. (§27.b) Notice of Final Judgment will be posted on the Settlement Administrator's website. (§42)

3.

Cost

of class notice. As indicated above, settlement administration costs are estimated not to exceed \$14,500. Prior to the time of the final fairness hearing, the administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

6. Attorney fees and costs

CRC rule 3.769(b) states: "Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action."

Ultimately, the award of attorney fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v.

Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) Despite any agreement by the parties to the contrary, “the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable.” (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether Class Counsel is entitled to \$300,000 (33 1/3%) in attorney fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees. Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel.

Class

Counsel should also be prepared to justify the costs sought (capped at \$35,000) by detailing how they were incurred.

7.

Incentive Award

The Settlement Agreement provides for an enhancement award of up to \$5,000 to the named Plaintiff. In connection with the final fairness hearing, named Plaintiffs must submit a declaration attesting to why he or she should be entitled to an enhancement award in the proposed amount. The named Plaintiff must explain why he or she “should be compensated for the expense or risk she has incurred in conferring a benefit on other members of the class.” (Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 806.) Trial courts should not sanction enhancement awards of thousands of dollars with “nothing more than pro forma claims as to ‘countless’ hours expended, ‘potential stigma’ and ‘potential risk.’ Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiff, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit’” (Id. at 806-807, italics and ellipsis in original.) The Court will decide the issue of the enhancement award at the time of final approval.